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CASE NAME: Taylor v. Allen

CASE NO.: 25SMCV00616

MOTION: Demurrer to the First Amended Complaint

HEARING DATE: 8/14/2026

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); Khoury v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show¿in what manner¿plaintiff can amend the complaint, and¿how¿that amendment will change the legal effect of the pleading.¿(Id.)

ANALYSIS

Defendant Carla D. Allen demurs to Plaintiff Wayne Taylor III's First Amended Complaint ("FAC") for Professional Negligence – Legal Malpractice, Negligent Infliction of Emotional Distress, Fraud and Breach of Contract.

Request for Judicial Notice

Defendant’s request for judicial notice is GRANTED. (Evid. Code § 452(d).)

Legal Malpractice

Defendant argues that Plaintiff fails to allege a duty stemming from an attorney-client relationship. To state a cause of action for legal malpractice, a plaintiff must plead the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise, a breach of that duty, a proximate causal connection between the breach and the resulting injury, and actual loss or damage resulting from the attorney's negligence. (Charnay v. Cobert (2006) 145 Cal.App.4th 170.)

Generally,
an attorney has no professional obligation to nonclients and thus cannot be held liable to nonclients. (Moore v. Anderson Zeigler Disharoon Gallagher & Gray (2003) 109 Cal.App.4th 1287, 1294; see Borissoff v. Taylor & Faust (2004) 33 Cal.4th 523, 529 [“an attorney will normally be held liable for malpractice only to the client with whom the attorney stands in privity of contract, and not to third parties”]; see also Fox v. Pollack (1986) 181 Cal.App.3d 954, 959 [an attorney-client relationship is not created by the unilateral declaration of one party to the relationship].)

The question of whether
an attorney may owe a professional duty to some third party is essentially one of law and, as such, involves a judicial weighing of the policy considerations for and against the imposition of liability under the circumstances. (Goodman, supra, 18 Cal.3d at 342.) The balancing factors to determine as a matter of law whether to impose a legal duty to a non-client were first articulated by the California Supreme Court in Biakanja v. Irving (1958) 49 Cal.2d 647. The analysis includes a variety of factors including: 1) the extent to which the transaction was intended to affect the plaintiff; 2) the foreseeability of harm to him; 3) the degree of certainty that the plaintiff suffered injury; 4) the closeness of the connection between the defendant's conduct and the injury suffered; 5) the moral blame attached to the defendant's conduct; and 6) the policy of preventing future harm. (Moore, supra, 109 Cal.App.4th at 1295.) Additional factors include: 7) the likelihood that the imposition of liability might interfere with the attorney's ethical duties to the client; and 8) whether the imposition of liability would impose an undue burden on the profession. (Id., at 1295-1296.)

Nonclients, such as
successor fiduciaries or intended named beneficiaries of an attorney's services, may have standing to sue for legal malpractice. (Borissoff v. Taylor & Faust (2004) 33 Cal.4th 523, 529.) For example, an attorney may be liable to nonclients for professional negligence when the nonclients were intended beneficiaries of the attorney's services, as this does not place an undue burden on the profession. (Lucas v. Hamm (1961) 56 Cal.2d 583, 588-589;) “[I]t has been settled in California that an attorney may be liable to nonclients in limited circumstances where the nonclient was the intended beneficiary of the attorney's services.” (Moore, supra, 109 Cal.App.4th at 1294–1295; accord Lucas, supra, 56 Cal.2d at 589–591 [attorney

owed duty of care to the explicitly named intended beneficiaries of client's will].) "A lawyer has a duty to a nonclient third party only if the client's intent to benefit that third party (in the way the third party asserts in their malpractice claim) is 'clear,' 'certain' and 'undisputed.'" (Gordon v. Ervin Cohen & Jessup LLP, (2023) 88 Cal.App.5th 543, 556.)

Here,
no attorney-client relationship is pled between Plaintiff and Defendant. The FAC expressly alleged that Defendant's client was Plaintiff's mother, Fannie C. Taylor, in regards to an underlying probate action, In Re: Woods Living Trust case no. BP159242. (FAC ¶ 9.) In 2005, Plaintiff's great aunt, Louise A. Woods, executed the Woods Living Trust and named Plaintiff as a beneficiary. (Id., ¶ 5.) After Ms. Woods's passing, Ms. Taylor acted as co-trustee for the Trust. (Id., ¶ 8.) In December 2014, the other co-trustee, Efie L. Roberston, attempted to have Ms. Taylor removed as co-trustee. (Id., ¶ 9.) In 2015, Ms. Taylor hired Defendant, with funds paid from the Trust assets, to file a petition in probate court to determine whether there was cause for the removal of Ms. Taylor as co-trustee. (Id.) In December 2015, the co-trustees agreed to resolve the petition via settlement, pursuant to which Ms. Taylor resigned as co-trustee leaving Robertson the remaining as sole Trustee. (Id., ¶ 15.) Plaintiff intermittently received some notices concerning the probate petitions. (Id.) Plaintiff was apparently omitted from lists of interested parties maintained by the counsel of record. (Id.) From the co-trustee's settlement through October 2016, Robertson "invoked" Defendant's duty to preserve trust assets by sending emails to Defendant. (Id., ¶ 16.) Ultimately, Plaintiff never received a distribution from the Trust. (Id., ¶¶ 7, 17.)

Plaintiff
does not allege facts showing that he was an intended third-party beneficiary of Defendant's services. The pled facts only establish that the client intended that Defendant represent her in the removal petition, which does not clearly, certainly or directly give any benefit to Plaintiff. Instead, he only pleads a mere conclusion that he was an intended beneficiary of the trust estate and therefore an intended beneficiary of Defendant's services to Ms. Taylor as trustee. (FAC ¶¶ 28-30.) Of course, Defendant did not draft the trust documents or act as trustee for the Trust. Further, the alleged malpractice stems from an erroneous distribution under the Trust. (Id., ¶ 32.) There are no allegations which establish that Defendant made any decisions regarding the Trust distributions. In fact, the record shows that the distributions occurred after Defendant's client was removed as a trustee. (Id., ¶ 19; RJN Ex. B.) Under the pled facts,

the Biakanja/Lucas factors do not weigh towards finding a duty between a Trustee's attorney and a beneficiary under a Trust, especially when the former co-trustee's attorney is not involved in the ultimate distribution of trust assets.

Accordingly, the demurrer is SUSTAINED. Leave to amend will only be granted if Plaintiff can demonstrate a reasonable possibility of successful amendment at the hearing.

Breach of Contract

To allege a breach of contract cause of action, a complainant must plead the contract, their performance or excuse for non-performance, defendant's breach, and damage to plaintiff therefrom. (Acoustics, Inc. v. Trepte Constr. Co. (1971) 14 Cal.App.3d 887, 913.) Although a written contract is usually pleaded by alleging its making and attaching a copy which is incorporated by reference, a written contract can also be pleaded by alleging the making and the substance of the relevant terms. (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

"A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it." (Civ. Code, § 1559.) "In Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817…our high court set forth three prerequisites to apply this doctrine: (1) the third party would in fact benefit from the contract; (2) a motivating purpose of the contracting party was to provide a benefit to the third party; and (3) permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives and the reasonable expectations of the contracting parties. [Citation.]" (Levy v. Only Cremations for Pets, Inc. (2020) 57 Cal.App.5th 203, 211-12.) "The motivating purpose of the contracting parties must be to provide such a benefit to [the third party]." (Goonewardene v. ADP, LLP (2019) 6 Cal.5th 817, 835.) " 'Because third party beneficiary status is a matter of contract interpretation, a person seeking to enforce a contract as a third party beneficiary " 'must plead a contract which was made expressly for his [or her] benefit and one in which it clearly appears that he [or she] was a beneficiary.' " [Citation.] [¶.] " ' "[E]xpressly[,]" [as used in [Civil Code section 1559] and case law,] means "in an express manner; in direct or unmistakable terms; explicitly; definitely; and directly." ' [Citations.] 'An intent to make the obligation inure to the benefit of the third party must have been clearly manifested by the contracting parties.' " [Citation.] Although this means persons only incidentally or remotely benefitted by the contract are not entitled to enforce it, it does not mean both of the contracting parties must intend to benefit the third party. Rather, it means the promisor… 'must have understood that the promisee...had such intent. [Citations.] No specific manifestation by the promisor of an intent to benefit the third person is required.' " ' " (Levy, supra, 57 Cal.App.5th at 212.)

The contract claim suffers from the same infirmities discussed above. Again, Plaintiff alleges a mere conclusion that he was an intended beneficiary of the Trust, but does not provide any facts which show he was an intended beneficiary of the contract for legal services between Ms. Taylor and Defendant. (FAC ¶ 34.)

Accordingly, the demurrer is SUSTAINED.

Fraud/Negligent Misrepresentation

The elements of fraud are: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) Negligent misrepresentation requires the defendant to make false statements believing them to be true, but without reasonable ground for such belief. (Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407.) In California, fraud, including negligent misrepresentation, must be pled with specificity. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) "The particularity demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered." (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1469.)¿¿

The FAC fails to allege any misrepresentation made by Defendant to Plaintiff. The only interactions alleged between Defendant and Plaintiff occurred in 2024, and show no misrepresentations. (FAC ¶¶ 23 -27.) Defendant simply forwarded court documents which Plaintiff requested, apparently as a courtesy. (Id.) Otherwise, the FAC alleges that Defendant made a representation to Plaintiff's mother concerning

Plaintiff's status as a beneficiary under the Trust, and none to Plaintiff himself. Plaintiff does not allege how he could have materially relied on said representation to his mother. Plaintiff only alleges a contention that he relied on Defendant's representation without any specificity. (FAC ¶ 39.)

Accordingly, the demurrer is SUSTAINED.

Negligent Infliction of Emotional Distress

"The law of negligent infliction of emotional distress in California is typically analyzed by reference to two theories of recovery: the 'bystander' theory and the 'direct victim' theory.¿ The negligent causing of emotional distress is not an independent tort, but the tort of negligence.¿ The traditional elements of duty, breach of duty, causation, and damages apply.¿ Whether a defendant owes a duty of care is a question of law."¿ (Spates v. Dameron Hosp. Ass'n (2003) 114 Cal.App.4th 208, 213, citations and quotations omitted.)

"[U]nless¿the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty." (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 985.) "Even then, with rare exceptions, a¿breach of the duty must threaten physical injury, not simply damage to property or financial interests." (Id.)¿¿

As to the NIED claim, Plaintiff relies on the same duties alleged in the malpractice claim. (FAC ¶ 43.) As discussed, there is no cognizable duty stated. Even if Plaintiff established that he was a client of Defendant, Plaintiff does not allege that Defendant assumed a duty in which the emotional condition of Plaintiff was an object. Additionally, the Complaint only claims damages to Plaintiff's financial interests, to wit, the $10,000.00 distribution under the trust. Therefore, Plaintiff cannot recover emotional distress.

Accordingly, the demurrer is SUSTAINED.